



A COMMUNITY OF CHOICE

CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

MEMO

TO: Honorable Mayor Patrick J. Collins, City of Cheyenne
Members of the City Council, City of Cheyenne

FROM: Wesley D. Bay, P.E., City Drainage Engineer

DATE: June 4, 2025

SUBJECT: Professional Service Agreement between the City of Cheyenne and HDR Engineering, Inc., for the 18th Street Reconstruction Project.

Please find the attached Professional Service Agreement between the City and HDR Engineering, Inc., for the 18th Street Reconstruction Project.

The project is located along 18th Street Between Snyder Avenue and House Avenue. The project consists of the design of a storm sewer interceptor to protect the historic downtown area from flooding, water transmission system design, sanitary sewer component replacement, ADA upgrades bringing this section of 18th Street into full ADA compliance, roadway design, and streetscape design.

Engineering Staff evaluates fee proposals for engineering services based on time and material estimates for the specific project. Those costs are readily tracked and verified during design operations and the City only pays for the actual time expended. We believe this agreement will provide the required services to complete analysis and preliminary design portion of the project.

Funding for this project will come from the 23 – 26 Optional 1% Tax Fund (5th Penny), a Federal Emergency Management Agency (FEMA) Hazard Mitigation Grant Program (HMGP) grant and the Board of Public Utility. The total professional services will be a cost not-to-exceed \$1,100,562.00. We respectfully request your approval of this professional services agreement.

City Contract No. _____

PROFESSIONAL SERVICES AGREEMENT

for

18th Street Reconstruction Project

This Professional Services Agreement (“Agreement”) is made and entered into by and between the City of Cheyenne, located at 2101 O’Neil Avenue, Cheyenne, Wyoming 82001 (“City”), and HDR Engineering, Inc., located at 7350 Stockman Street, Suite A, Cheyenne, WY 82009 (“Consultant”). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK**

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. **TIME OF PERFORMANCE**

The work included in this Scope of Work extends until the work described in Exhibit A is completed.

3. **COMPENSATION**

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of One Million One Hundred Thousand Five Hundred Sixty-Two Dollars (\$1,100,562.00) as stated in Exhibit A.

4. **CONSULTANT RESPONSIBILITY**

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. **COMPLIANCE WITH LAWS**

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Consultant's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a “claims made” policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant’s services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers’ compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policy endorsements listing the City of Cheyenne as an additional insured. The City’s failure to request or review such endorsements or certificates shall not affect the City’s rights or Consultant’s obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.
15. TERM AND TERMINATION
The term of this Agreement shall be from date of execution through the completion of services. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. SUPPLEMENTAL GENERAL CONDITIONS

In consideration of the mutual covenants and obligations herein expressed, it is further agreed by and between the parties as follows:

Standard of Care. The standard of care for all professional consulting and related services performed or furnished by Consultant under this Agreement will be the care and skill ordinarily used by members of the subject profession practicing under similar circumstances at the same time and in the same locality. The Consultant makes no warranties, express or implied, under this Agreement or otherwise, in connection with any services performed or furnished by Consultant.

Technical Accuracy. The City shall not be responsible for discovering deficiencies in the technical accuracy of Consultant's services. Consultant shall correct deficiencies in technical accuracy without additional compensation unless such corrective action is directly attributable to deficiencies in City-furnished information.

Conflicts within the Agreement. If there is a conflict within this Agreement, the order of priority of the documents which make up this Agreement, from highest to lowest, will be:

- (a) Agreement.
- (b) Any supplementary conditions to the General Conditions.
- (c) General Conditions.
- (d) Exhibit A – Scope of Work with Attachments 1 and 2
- (e) Other schedules to this Agreement.

Any changes in the Consultant's or Subconsultant's staff or fee structure will be presented in writing to the City for approval prior to initiating any changes or performing any work.

Overhead and Normal Business Expenses. The Consultant shall include customary overhead costs and statutory benefits as part including, but not limited to, social security contributions, unemployment, excise and payroll taxes, workers' compensation, health and retirement benefits, bonuses, sick leave, vacation, and holiday pay, as applicable, within the billing rates furnished in Exhibit A. Additionally, the cost of general and administrative overhead which includes salaries and wages of employees engaged in business operations not directly chargeable to projects, plus non-Project operating costs, including but not limited to, business taxes, legal, rent, utilities, office supplies, insurance, and other operating costs shall not be directly billed to project and assumed to be included within the billing rates furnished.

Design Process Documentation. To document the design process, the consultant will be required to provide a Decision and Design Log for the project duration. This log shall be furnished to the City of Cheyenne in conjunction with the project meetings. The purpose of the log is to document and track major decisions during the design and development process. The log shall generally follow the format outlined in Table 1. *Design and Decision Log*:

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Table 1. Design and Decision Log						
No.	Date	Decision	Alternatives Considered	Reasons	Decision Made By	Additional Task Required
Sequenced log number.	Date the decision was made.	A one-sentence summary of the decision made.	A list of the other approaches considered.	A two to three sentence summary of why the decision was made. A link to additional documentation, if required and [Title].	Who made this decision?	If applicable, a list of additional tasks required by the design or follow-up required.

25. ENTIRETY OF AGREEMENT

This Agreement consisting of eight (8) pages, and Exhibit A consisting of forty-seven (47) pages, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kylie Soden, City Clerk

Date: _____

Consultant

By: _____

Print Name: _____

Date: _____

PROFESSIONAL SERVICES AGREEMENT

Project Name: 18th Street Reconstruction Project

Exhibit A – Scope of Work

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PROFESSIONAL SERVICES AGREEMENT

Project Name: 18th Street Reconstruction Project

A.1 Overview

Consultant services for the 18th Street Reconstruction Project are the design and development of a complete set of construction documents, including plans, specifications, and estimates. Any innovative solutions that are cost effective and meet project goals will be incorporated during project scoping negotiations and included in the design. Work required for this project will include project management; hydrologic and hydraulic analysis; storm and sanitary sewer design; water transmission system design; roadway design; geotechnical investigation; right-of-way surveying; and utility location, coordination, and design.

The project requires a professional design team that includes a Civil Engineer licensed in the State of Wyoming with a minimum of 10 years of project design experience in one or more of the following disciplines: storm and sanitary sewer design; hydrologic and hydraulic analysis; water transmission system design; roadway design; with the ability to provide in-house or capacity to sub-consult for survey services, geotechnical investigation and those disciplines required for the project.

A.2 Project Description

A.2.a Overview

The project is located along 18th Street and extends from House Avenue west to Snyder Avenue, or potentially Crow Creek, as vetted through the storm sewer design. The 18th Street Reconstruction project is comprised of roadway design, storm sewer design, sanitary sewer design, and water transmission system design.

The project will include the design of a storm sewer interceptor mainline and inlets along 18th Street. The outfall may be done via a tie-in with the existing 19th Street 60" steel reinforced polyethylene (SRPE) interceptor pipe and/or extend to Crow Creek under 18th Street. This will require determining if the 19th storm main has sufficient capacity to take on storm water from the proposed 18th Street system. Included in the hydrologic and hydraulic analysis of this portion of the Capitol Basin will be the evaluation of additional storm infrastructure that has been constructed within the last decade. These systems include the 26th Street Interceptor, Civic Commons storm system and detention pond, and the 19th Street Interceptor.

This project also includes the replacement of the existing water main from Snyder Ave to House Ave including a new casing under the Reed Ave railroad tracks. The new water main will be relocated to the typical ROW alignment where possible and eliminate parallel mains. The replacement will include all branch water mains, fire hydrant leads, fire hydrants, and water service lines within the ROW. This project also includes the replacement of the existing manholes and lampholes in the ROW.

A.2.b Project History and Existing Facilities

18th Street within the proposed project limits is a minor collector. The 18th Street roadway corridor has a multitude of both wet and dry utilities, most of which are in need of replacement. There is insufficient storm sewer to protect the central and eastern downtown area during significant storm events.. The cast iron water main in the corridor dates from the 1940's to 1960's and is corroded and undersized for adequate water

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Project Name: 18th Street Reconstruction Project

pressure and volume for fire protection. The water lines will need to be adjusted to accommodate the increased storm sewer main size and inlet laterals.

A.2.d Proposed Improvements

Proposed improvements include roadway reconstruction, storm sewer construction, sanitary sewer upgrades, water transmission system upgrades, ADA upgrades, and utility relocation.

At a minimum, the following should be expected as tasks for the project:

- Roadway geometric design.
 - Vertical and horizontal alignment of 18th Street.
 - Establishment of a tie between roadway and wet utilities components.
 - Constraints from existing buildings, intersections, and overall area topography will allow for only minimal changes to the vertical and horizontal alignments of 18th Street.
 - ADA facility upgrades in the ROW.
- Storm sewer design
 - Hydrologic and hydraulic evaluation
 - Evaluation of added infrastructure to the west and central portions of the Capitol Drainage Basin.
 - Interceptor sizing, inlet locations, and associated elevations.
- Potable water transmission system design.
 - Mains, fire hydrant leads, fire hydrants, and service lines in the ROW.
- Sanitary sewer design.
 - Manhole and lamphole replacement in the ROW.

A.2.e Right-Of-Way

Right-of-way acquisition is not anticipated for this project.

A.2.f Project Funding and Timing

There is sufficient funding allocated toward the design of the project. The storm sewer design will be partially funded by a FEMA grant. Roadway design will be funded by the 5th Penny Optional Sales tax. Sanitary sewer and water transmission design will be funded by the Board of Public Utilities (BOPU). This will require invoicing breakouts of each of the three funding mechanisms for design services and bid items.

The design phase of the project is anticipated to be completed within fourteen (14) months from the date of execution of a Professional Services Agreement with the selected firm, or by August 1st, 2026.

The construction of the project will be postponed until sufficient funding is available. An additional RFP will be released for construction management and/or engineering assistance at that time.

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Project Name: 18th Street Reconstruction Project

A.3 General Conditions

The following items are included as part of the basic compensation for this project:

- Normal business expenses - phone, postage, etc.
- Cost of insurance.
- In-house computer time and service.
- Word processing, accounting, and man-hour records.
- Permits and license fees.
- Mileage.
- Travel fees, room and board, per diem.
- Printing costs for all standard review, bidding, and as-constructed plans and other correspondence and contract documents.
- Film and processing.

Additional items which will be addressed:

All subconsultant fees at cost, which may include:

- Surveying.
- Utility investigation.
- Geotechnical Investigation.

Other items:

- Overtime engineering and inspection.
- Special inspections, including vacuum excavation potholing.
- Survey materials, stakes, etc.
- Coordination with franchised utilities.
- Additional required services.

Any changes in the Consultant's or Subconsultant's staff or fee structure will be presented in writing to the City for approval prior to initiating any changes or performing any work.

All pay invoices will include a summary comparing the proposed schedule and actual work completed, actions items outstanding for both the City and Consultant, a summary of work completed during the pay period, and commentary associated with impacts to the schedule.

A.4 Environmental Clearances

Environmental clearances are not anticipated for the project.

A.5 Public Involvement

Three public meetings will be held for the project. The Consultant will provide public notice and media releases with assistance from the city; coordinate the venue of the meeting; prepare exhibits, handouts, and comment cards; and correlate public comments. A preliminary public meeting will be held to gain public

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Project Name: 18th Street Reconstruction Project

input on the preferred intersection and roadway configuration. Two additional meetings will be held after the 30% and 60% plan issuances.

A.6 General Design

A.6.a Design and Construction Standards

All design and construction will be done in accordance with the latest edition of the applicable standards including, but not limited to, the following:

- AASHTO Policy on Geometric Design of Highways and Streets.
- AASHTO LRFD Bridge Design Specifications.
- AASHTO Roadside Design Guide
- AASHTO Guide for the Development of Bicycle Facilities
- Manual on Uniform Traffic Control Devices.
- City of Cheyenne and Board of Public Utilities Standards and Specifications.
- WYDOT Standard Specifications for Road and Bridge Construction (structure only).
- City of Cheyenne Unified Development Code (UDC).
- Applicable railroad standards if in railroad ROW.

Conflicts between design and construction standards will be resolved by the City.

A.6.b Surveying

Right-of-way surveying will be completed for the extent of the project as needed to complete the project design. Project control points will be established as needed. All surveying, design, and temporary control points will be referenced in the City control network. Property corners necessary to establish the right-of-way will be monumented as necessary. Existing right-of-way, any required permanent and temporary easements, and parcel ownership will be shown in the project plan sheets.

A.6.c Utilities

All known utilities will be investigated and incorporated into the project design. These include, at a minimum:

- Telephone.
- Internet and cable.
- Electric and gas.
- Water and sanitary sewer.
- Signals, signs, and storm sewer.
- Fiber optic cable.

Any conflicts with other utilities, either active or abandoned, will be investigated and resolved.

Preliminary construction sequencing/phasing and traffic routing plans along with special provisions will be developed to facilitate utility work. Locates will be performed for any potential utility conflicts, this

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Project Name: 18th Street Reconstruction Project

includes both surface utility locates and non-destructive subsurface utility excavation locates. All utilities within the project limits will be shown on the project plan sheets.

A.6.d Drainage Impact Study

A Drainage Impact Study will be performed for the project area in accordance with Section 3.2 of the Unified Development Code. The report will document the drainage impacts (if any), both upstream and downstream, of the project and present a design to mitigate any negative impacts. All supporting calculations will be included in the report.

A.6.e Geotechnical Investigation

A geotechnical investigation will be performed within the project limits and will include as necessary, but not be limited to:

- Geological strata defining soil and/or bedrock locations and elevations.
- Soil and/or rock properties.
- Soil classification.
- Recommended retaining wall and foundation types for any structures on the project (LRFD values).
- Subsurface drainage characteristics.
- Groundwater location.
- Any other characteristics not explicitly stated herein but required for completion of the project.

The results of the geological investigation and recommendations will be summarized in a geotechnical report. All required data, testing, bore hole locations, results, and recommendations, for the aforementioned investigations, will be summarized and included in the report.

A.6.f Surfacing Recommendations

Surfacing recommendations will be prepared based on geotechnical investigations performed throughout the project limits. The recommendations will outline surfacing thicknesses and recommended materials for subbase, base, and finished grade courses. Surfacing recommendations, material types, mix designs, and associated rates of application will be summarized in a pavement design report. All material types and rates of application will be included in the design plan summaries.

A.7 Plan Submittals

A.7.a General

Requirements for each formal plan issuance are outlined below and will act as a general guideline for submittals. All plan issuances will show utilities on plan and profile sheets. Additional intermediate and informal plan issuances may be required due any unforeseen issues encountered during the design

PROFESSIONAL SERVICES AGREEMENT

Project Name: 18th Street Reconstruction Project

process. It should be expected that there will be two rounds of reviews and one plan inspection meeting for each plan issuance.

A.7.b Preliminary Plans

Preliminary plans will be submitted illustrating the conceptual roadway alignment, wet utility alignments, and proposed utility relocation. These plans should be approximately 30% complete. The general layout of the roadway, intersections/ADA, and wet utilities be clear and assist in the visualization and verification of the recommended design parameters and configurations. At a minimum, this plan submittal will include the following design elements:

- Roadway alignments.
- Preliminary storm sewer, sanitary sewer, and water transmission system alignments.
- Preliminary earthwork.
- Alternative design options that remain undecided.
- Preliminary Engineer's opinion of probable cost.

A.7.c 60% Plans

60% plans will be submitted containing the general layout of the roadway, intersection, and structures. These elements should be nearly finalized with only minor adjustments needed for utilities and right-of-way. At a minimum, the plans will include the following design elements:

- Vertical and horizontal roadway alignments with plan and profile sheets.
- Roadway typical sections
- Vertical and horizontal alignments for storm sewer, sanitary sewer, and water transmission system alignments with plan and profile sheets.
- Construction easements.
- Intersection/ADA layouts.
- Earthwork.
- Estimated quantities.
- Engineer's opinion of probable costs.

A.7.d 90% Plans

90% plans will be submitted when all right-of-way and utilities have been delineated and proposed relocations (if required) are finalized. All design elements required for the previous submittal will be finalized and incorporated into this plan set. This submittal will contain a complete set of construction documents, including plans, specifications, and estimates. This set of plans will contain the following:

- Title sheet.
- Legend sheet.
- Summary sheets, using City bid items, which will include:
 - Individual summaries for all pay items.
 - Total Estimated Quantities summary.
- Roadway typical sections.

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- Roadway Plan and Profile sheets.
- Storm sewer plan and profile sheets.
- Sanitary sewer plan and profile sheets.
- Water transmission system plan and profile sheets.
- Necessary detail sheets for storm sewer, sanitary sewer, and water transmission system.
- Intersection/ADA layouts and details sheets.
- In addition to design plans the submittal will contain:
 - Design cross sections.
 - Earthwork.
 - Index of City of Cheyenne and Board of Public Utility Standard drawings.
 - Index of Standard WYDOT plans.
 - Index of Supplementary Specifications to the Standard Specifications.
 - Special Provisions to supplement the Standard Specifications.
 - Engineer's opinion of probable costs.

A.7.e Final Plans

All elements presented in previous plans will be finalized and all required changes from each respective plan issuance will be incorporated into this plan set. This submittal will contain a 100% complete set of construction documents, including plans, specifications, and estimates. All electronic design and plan files will be submitted to the City for archiving.

Exhibit A

Scope of Services – Rev.2

May 16th, 2025

BACKGROUND

HDR has responded to an RFP issued by the City of Cheyenne on March 6th, 2025; upon selection HDR has developed the below scope of services combines the desired and stated Scope of Work and in discussion with City Staff as well as HDR's evaluation and interpretation of the level of effort required and the assumptions necessary to complete the enclosed Fee Estimate.

TASK SERIES 1.0 – General Conditions

Tasks 1.1 through 1.4

- Task Series 1.0 General Conditions has been developed to capture overall project administration, project management, and quality control costs throughout the duration of the project.
 - Project duration has been estimated at 15 months per the RFP.
 - Assume attending one (1) on design review meeting per month Assume one (1) budget and schedule update per month
 - Assume supplemental progress meetings via phone unless combined with other project trips per month as stated above

TASK SERIES 2.0 – Preliminary Design Phase

Task 2.1 – Surveying & Base Mapping

- HDR will perform data collection and field survey as follows:
 - Establish Horizontal and Vertical Control
 - Topographic Survey of roadway centerline, shoulders, C&G, and other hard surfacing features
 - Survey surface features such as utilities (public and private), fences, mailboxes, signs, etc.
 - Survey existing utility inverts including photograph conditions and measure sizes
 - Property Corners will be recorded based on number of corners able to be found on-site during the duration of the data collection and field survey task. Corners will be found using a mag-locator and recorded where discovered
 - Private Utility Locations will be recorded based on One-Call of Wyoming's provided field markings.
 - Additional coordination with identified utility owners is anticipated in order to verify what has been field located.
 - Coordination will include post survey mapping review to evaluate significant public and private utilities.
 - Subsurface utility exploration is anticipated and will be performed in conjunction with data collection efforts.
 - It is assumed that no more than 20 / EA exploratory locations will be required. This has been estimated with City of Cheyenne input (planning on 2/EA per block of project area)

- Assumptions:
 - Right-of-Way acquisition is NOT anticipated, or will be completed by others, and as such legal exhibits are not anticipated

Task 2.2 – Project Kick-off & Conceptual Design

- HDR will attend the scoping meeting with the City to get a good understanding of the project and background history on the roadway.
- 2 - Field visit / on-site investigation – Two people will review the site with City Staff
- Establish Project Limits and estimated project impact areas for any future cultural resources coordination items.
- Produce typical sections based on existing conditions, Cheyenne UDC, and geotechnical recommendations

Task 2.3 – Geotechnical Investigation

- HDR has partnered with Terracon to perform Geotechnical Investigation Services.
 - The scope of services from Terracon has been attached for reference.
 - The Geotechnical Report will provide data and alternatives for pavement sections, general site soils, groundwater (if encountered), and soil properties to support foundation and footing design.

Task 2.4 – Roadway and Intersection Geometrics

- Horizontal Alignment layout will be completed with City input. Adjustments to the existing alignment are not anticipated.
 - Vertical Alignment will be dictated by ADA compliance and surface drainage.
- HDR will evaluate design parameters and identify areas where improvements cannot be made to satisfy roadway geometry as governed by AASHTO Geometric Design of Highways and Streets.
- Typical sections will be generated for use in public meeting #1 and will be primarily concepts in nature at this stage of planning and analysis.
- HDR will collect input from the public, the City, and others to finalize the preferred alternative for the Preliminary Plans Submittal.
- Additionally, the preferred typical section(s) will be used to identify areas where physical site constraints will need to be addressed or discussed prior to entering the Final Design Phase.

Task 2.5 – Preliminary Plans (Submittal)

- HDR will provide preliminary design plan and profile sheets with limited quantities for review by City
 - Full quantity take-offs will not be completed during this stage of review
 - Cross Sections will not be completed for this stage of review
- Project total quantities will be estimated to develop a preliminary cost estimate
 - HDR will follow the American Association of Cost Estimators guidelines during this effort
- Bid items will be based on Technical Specifications (City of Cheyenne & WYDOT)
- Preliminary project cost estimate will be provided at this design review
 - City review time has been estimated to be completed and returned in 5 working days in order to maintain proposed project schedule.

~~Task 2.6 – Environmental Resource Review~~

Task 2.6 has been struck and replaced with Task 4.2 following contract negotiations upon selection.

Task 2.7 – Public Involvement (Meeting #1)

- HDR will work with the City of Cheyenne to develop a public involvement strategy to promote the public open house style meeting(s). Task 2.7 in the Preliminary Design Phase and Task 3.7 in the Final Design Phase share the same scope of work, which has been described in its entirety below:
- Public Open House Meeting 1: this will occur early in the project to announce and discuss goals and plans to the public and to gather input on primary design considerations.
- Public Open House Meeting 2: this will occur AFTER the submission of ROW & Utility Plans and is intended to show the outcomes from previous meeting data collection, alternatives analysis, and the preliminary design phase.
- Two preparation conference calls are anticipated with City Engineering Staff; one in advance of each of public meeting to solidify content, messaging, and goals for each public meeting
- The three public open house style meetings
 - 3 – In-Person Meetings
 - Public Meetings are intended to last no longer than four (4) hours each and HDR intends to utilize one public involvement specialist and two local staff to attend, interface, and coordinate with attendees.
- The deliverable documents stemming from the Public Meeting(s) are anticipated as follows:
 - Three content documents, one in advance of each public open house meeting, to include web text, press releases and news advertisements.
- Meeting plans and summaries for each public open house meeting.
- Communication materials for public meetings including:
 - Poster Board Exhibits and Handouts (if in person)
 - 200 double-sided, Color handouts (100 for each meeting)
 - 12 display boards (6 for each meeting)
 - Printed Comment Cards (if in person)
 - Sign-in sheets and staff nametags
- HDR will also participate in three (3) additional Stakeholder meetings hosted by the City with landowners and affected businesses.
 - This includes a 1 on 1 meeting with the City and each business, if desired. Estimated number of meetings is 20 each lasting 1.5 hours with 2 HDR staff.
- Assumptions:
 - Meeting notifications will be distributed electronically by the City to be shared and posted by stakeholders
 - The City will be responsible for coordinating with local papers for public notice; HDR will provide content.
 - Postage, publication, room rental and refreshments costs for public involvement activity are not included in the fee
 - Web hosting or website construction is not anticipated
 - The City will secure an appropriate venue for both public open house meetings
 - If desired, the City will host and maintain a project web page; HDR will provide content
 - If desired, the City will be responsible for securing variable message boards for use in promoting public meeting

Task 2.8 – Baseline Hydrologic & Hydraulic Analysis & Drainage Impact Study

- HDR will work within the baseline model that has been established for the Capitol Basin area to understand existing conditions and begin to develop improvements and sizing for new infrastructure.
 - Review existing model and understand model logic and linkages.
 - Update based on available information from preceding consultant updates and improvements that have been made to the local drainage system.
 - Assess and develop scenarios based upon UDC criteria & as constructed drawings
- Model Review and Updates
 - HDR will apply industry standard practices in modelling to perform a comprehensive review and update of the existing model.
 - Recommendations will be made for model improvements and implementation.
- HDR will provide an updated conditions model for the 18th street updates along with the Drainage Impact Study for the City's review. This study will comply with Section 3.2 of the UDC and will assess the following:
 - Upstream and downstream impacts
 - Compliance with drainage criteria for storm sewer design.
 - Preliminary Drainage Plan will be provided at this stage.
 - Define minimum project goals
 - Define issues/opportunities/fatal flaws that drive the concept plan (project goals, utility conflicts, grade, ROW/easements, etc).
 - Review the Existing model
 - Update the existing model for recent projects
 - Develop concept design alternative(s) based on input from the City and the results of the issues/opportunities/fatal flaw analysis

Task 2.9 – Utility Design & Coordination (BOPU)

- HDR will conduct preliminary utility design for replacement of the existing potable water system & water services within the project area, proposed storm sewer interceptor and inlets as determined by the hydrologic & hydraulic analysis and for replacement sanitary sewer manholes within the project area.
 - The design team will coordinate with Cheyenne BOPU for design of replacement of water mains, fire hydrants & fire hydrant leads and service lines within the ROW of the project area.
 - The design team will provide preliminary storm sewer design including storm drain interceptor alignment and profile and preliminary placement of inlets. This will be based off of the model updates that will be performed in the preceding tasks. Model sizing will dictate initial design criteria and will form part of the iterative process for enhancing the drainage design for this project. This phase will include coordination with the City's Stormwater Division Manager. Preliminary storm sewer sizing will be back tested using the updated model to review system performance.
 - The design team will coordinate with Cheyenne BOPU for design of replacement sanitary sewer manholes within the ROW of the project area. It is assumed that recent sewer CCTV inspection video will be provided to HDR for review and identification of potential sewer main defects that should be corrected prior to future CIPP lining planned by BOPU. HDR will provide recommendations for sewer main replacements.
- Utility Deliverables include:
 - Storm Drain Alignment and Profile
 - Water Alignment and Profile
 - Sanitary Sewer Manhole Replacement Recommendations

Task 2.10 – 60% Plans

- HDR will provide 60% Plans as requested in the RFP. This includes plan and profile sheets with limited quantities for review by City
 - Full quantity take-offs will not be completed during this stage of review but shall be furthered from the Preliminary Plans Submittal
 - Cross Sections will not be completed for this stage of review
- Project total quantities will be estimated to prepare a preliminary cost estimate
 - HDR will follow the American Association of Cost Estimators guidelines during this effort
- Bid items will be based on Technical Specifications (City of Cheyenne & WYDOT)
- Preliminary project cost estimate will be provided at this design review
 - City review time has been estimated to be completed and returned in 5 working days in order to maintain proposed project schedule.
- It is assumed that intersection geometry and horizontal location of proposed new utilities will be largely finalized for this plan review. Minor adjustments to accommodate ROW limitations and/or utility conflicts will be established in the 90% Plans submittal.

TASK SERIES 3.0 – Final Design Phase

Task 3.1 – Traffic Engineering, Lighting, Signalization

- HDR will analyze traffic volumes to provide guidance and recommendations in determining the geometry at the intersection. HDR will review available planning studies (i.e., the Connect 2045 Cheyenne Area Transportation Master Plan) and how they correlate to the prescribed configuration stated in the RFP.
 - It is assumed that traffic volumes will be available for use and new counts will not be required.
 - It is assumed that signal warrants will not be required at currently unsignalized intersections.
- HDR will develop traffic signal design, intersection, signing, and striping sheets, and quantities. The traffic signal design will be for the 18th Street and Pioneer Ave. intersection and the 18th Street and Carey Ave. intersection will be designed to City of Cheyenne standards.
 - The signals on Central Ave. and Warren Ave. We assume will not be replaced as WYDOT has recently upgraded them.
- The following information will be required to lay out the traffic signal(s) and lighting:
 - Existing topography, subsurface utilities and finalized intersection geometrics
 - HDR is aware that the City would prefer to reuse the existing signal elements at the intersection. The signal design will be developed to reuse the existing signal components if/where possible.
- Signing and striping design will include 18th Street from Snyder Ave. to House Ave
 - This work will be in accordance with the MUTCD and the City of Cheyenne Standards
- HDR will with subconsultant Terracon to perform L-Pile analysis for Signal Footing Design based on geotechnical parameters

Task 3.2 a&b – Detailed Underground Utility Design (Water, Sewer, Storm Sewer)

- HDR will evaluate existing utilities and identify potential conflicts with proposed improvements.
 - Public utilities include water, sanitary sewer, and storm sewer
- HDR will update utility design to address comments and advance design for replacement of the existing potable water system within the project area, proposed storm sewer interceptor and inlets and for replacement sanitary sewer manholes within the project area.

- The design team will coordinate with Cheyenne BOPU for final design of replacement of water mains, fire hydrants & fire hydrant leads and service lines within the ROW of the project area.
 - The design team will provide final storm sewer design including storm drain interceptor alignment and profile and final anticipated placement of inlets. Storm sewer design will be completed following the preliminary design effort and the Grading Plans submittal. A reasonably accurate proposed ground surface will be necessary to depict surface drainage and design the collection system. It is assumed that surface drainage will be collected in inlets with lateral piping to upgraded storm sewer 'mains' OR connected to existing storm sewer 'main' line piping OR will mimic the existing condition on-site and can be discharged into the adjacent Crow Creek drainage basin with appropriate erosion and sediment control measures.
 - It is assumed that connection to existing storm sewer will be made without the need for additional storm sewer treatment.
 - Inlets will be designed to comply with City of Cheyenne design standards
- HDR will provide an updated final conditions model for the 18th street updates along with the Drainage Impact Study for the City's review. This study will comply with Section 3.2 of the UDC and will assess the following:
 - Upstream and downstream impacts
 - Compliance with drainage criteria for storm sewer design.
 - Development of grading and erosion control permit.
 - Final Drainage Plan will be provided at this stage.
 - The design team will coordinate with Cheyenne BOPU for final design of replacement sanitary sewer manholes within the ROW of the project area.
 - Utility design work for water and sanitary sewer will be progressed and communicated with the City and the Cheyenne BOPU (with City approval).
 - Assumes no water or sanitary sewer modeling will be required (BOPU will provide)

Task 3.3 – H&H Drainage Model Updates

- HDR will review the available models and create project- specific SWMM models that analyze the proposed 18th Street storm water system, including inlets, laterals, trunk lines and surface flows.
 - This model will be imported into either InfoSWMM or PCSWMM to facilitate scenario management and model updates in accordance with the design process. Both InfoSWMM and PCSWMM use the SWMM 5 engine and provides seamless import and export functions to go between the two modeling platforms, with the final deliverables to be provided in the SWMM 5 format.
- HDR will update hydraulic & hydrologic model based on the information gathered in task 2.8.
 - This assumes provision of the existing stormwater model for drainage areas that will possibly contribute or interact with the project scope along 18th Street
- HDR will refine design and model through the progression of final design
 - This includes the final model deliverable reflecting the final design plans

Task 3.4 – Geotechnical Recommendation(s) Final

- Geotechnical partner Terracon will finalize Geotechnical Investigation efforts with a final report detailing bearing capacities for structural design, surfacing section(s) for use in the intersection & roadways, and on-site soil characteristics that will be encountered during construction.
- HDR will review Terracon's final deliverable(s) for content and applicability

~~Task 3.5 – Preconstruction Structural Assessment~~

- Task 3.5 has been struck and replaced with Task 4.1 following contract negotiations upon selection.

Task 3.6 – Public Involvement (Meeting #2)

- Refer to Task 2.7

Task 3.7 – 90% Design Plans

- 90% Design Plans will be submitted with accompanying information necessary to finalize design review(s) and enter the Final Plan preparation phase
 - It is assumed that legal survey will not be required, and ROW acquisition has been completed by the City prior to submission of these plans.
- Plans will include drafts for summaries, details of utility adjustments, plan and profile sheets, draft set of cross sections, and a 90% set of project special provisions
- City review time must be completed and returned in 5 working days in order to maintain desired project schedule.
 - It is assumed that adjustments to public utilities will be completed solely with the City of Cheyenne and the Cheyenne BOPU
 - No Private Utility Relocations will be designed specifically by HDR. It is assumed the design for these adjustments will be done by the Utility Owner and can take place prior to, or during, construction.
- Project Plan review will be completed between City, BOPU, and HDR. Other agency review will not be required.

Task 3.8 – Public Involvement (Meeting #3)

- Refer to Task 2.7

Task 3.9 – Final Design (Plans, Specifications, Estimate)

- HDR will provide Final Design plans and Specifications for bidding.
 - This includes summary tables for bid items being encountered in the work
 - Cross Section Drawings will be provided for pertinent utility crossing(s) and roadway sections
- Project quantities will be taken from the bid form to generate an Engineer's Estimate
 - HDR will follow the American Association of Cost Estimators guidelines during this effort
- Bid items will be based on Technical Specifications (City of Cheyenne & WYDOT)
 - The City will provide front-end documents for bidding (i.e., "front-end" documents such as the advertisement, instructions, bid form, agreement, etc.)
- HDR will provide recommendations to the City on desired milestones and pertinent data such as Contract Time, Liquidated Damages, etc.
 - HDR will provide project Special Provisions to supplement the Technical Specifications
 - City review time must be completed and returned in 5 working days in order to maintain desired project schedule.
- Hard Copies of Project documents will be provided per the Scope of Work in the RFP
 - Project will go through the HDR QC process for Quality Control prior to bidding.
 - Estimated Total Plan Sheet Count of 80 pages including Title Page, Summaries, P&P Sheets, Utility Plans, and Standard Details
- Cross Sections will be provided on 50-foot intervals (Est. 20 pages)
- Final Deliverable will include
 - Stamped / Sealed Plans
 - Project Special Provisions
 - Cost Estimate

- Quality Assurance/Quality Control Review
 - HDR will review plans, documents, specifications, for accuracy and reasonableness.
 - QA/QC comments, responses, and resolutions for drawings and special provisions will be documented and kept on file.
 - QA/QC Review will be completed by an experienced employee with HDR that has had limited involvement with the project and can review the project from a fresh perspective

Subconsultants

- HDR has partnered with Badger Daylighting, Terracon, and Logan Simpson to provided additional services as described herein. Please refer to proposal(s) from teaming partners for detailed scope of services.

TASK SERIES 4.0 – Specialty Services

Task 4.1 – Pre-Construction Structural Existing Condition Assessment

- HDR will perform an existing condition assessment of the buildings along the 18th Street Corridor.
 - Existing condition assessment will not evaluate structural competence
 - Condition assessment will be done with two HDR staff, one will be a Wyoming licensed Professional Engineer.
 - Effort is anticipated to take approximately 2 weeks of field time followed by 2 weeks of documentation and reporting time.
 - Condition assessment will be limited to structure exterior(s) only
- Final Deliverables will include:
 - Digital Files (photos and/or videos) of existing conditions
 - Technical memorandum/report summarizing existing conditions

Task 4.2 – Cultural Resources Review

- The following tasks outline HDR's approach to preparing the project for potential federal funding by conducting a resource review that can be utilized in future National Environmental Policy Act (NEPA) documentation. While no federal funding is currently secured, this effort aligns reviewed data with NEPA process requirements should federal funds be pursued.
- Cultural/Environmental Resource Review Process: HDR proposes a two-step process: 1) Resources Overview Report – This document will summarize the environmental conditions within the study area and support early decision-making. 2) NEPA Document (if needed) – If federal funds are pursued, HDR can coordinate with the federal lead agency to determine the appropriate NEPA pathway and prepare the required documentation under an additional scope.
- Study Area and Methodology: HDR will define a study area extending 500 feet from the project centerline for environmental review and approval. This area will form the basis for desktop and field studies, ensuring that findings are adequate for future NEPA compliance. The study area review will be documented in a Resources Overview Report to inform project planning and potential federal review.
- Resource Categories to be Reviewed:
 - Aquatic Resources and Floodplains: HDR will review publicly available online resources, including the National Wetlands Mapper, National Hydrography Dataset (NHD) maps through NREX, and Federal Emergency Management Agency (FEMA) floodplain data, to determine the presence and extent of water resources and floodplains in the project area.

If any regulated aquatic features are identified, HDR will coordinate with the appropriate agencies to confirm jurisdictional status and permitting requirements.

- Recreation Properties: Section 4(f) and 6(f) properties within the study area will be identified and documented. No additional coordination is anticipated unless required by federal agencies.
- Cultural Resources: A Historic Built Environment Survey for the 18th Street Project: HDR is providing design and consulting services to the City of Cheyenne for planned improvements to 18th Street (Project). In the event the proposed Project is supported through a Federal Highways Administration (FHWA) grant, a federal nexus will be established and compliance with Section 106 of the National Historic Preservation Act of 1966 (NHPA), as amended, and its implementing regulations at 36 Code of Federal Regulations §800, will be required. HDR will provide cultural resource support for NHPA compliance as part of its consulting and design services for the Project. Associated tasks will include completion of a historic built environment survey and preparation of a Section 106 determination of eligibility and effects analysis report. The report will include recommendations for National Register of Historic Places (NRHP) eligibility for cultural resources within the Area of Potential Effects (APE) and management recommendations for identified historic properties. The survey report will be conducted in accordance with Wyoming State Historic Preservation Office (SHPO) standards.
 - Built Environment Survey: HDR will complete an architectural history survey for the built environment (buildings, structures, objects) within the proposed APE. It is presumed that the APE will consist of the entire extent of 18th Street within the study area and all parcels adjacent to 18th Street (one parcel deep on both sides of the street) from Snyder Ave. to House Ave. Built environment resources encountered during this review will be evaluated for NRHP eligibility by staff meeting the SOI Professional Qualification Standards for history or architectural history. The review of built environment resources will include a field survey of the direct APE, as well as a review of assessor records, historical aerial imagery, and historical maps, to identify structures and buildings which are 50 years or older.
 - The results of the field survey will be presented in a determination of eligibility and effects analysis survey report. The report will be prepared in compliance with SHPO guidelines for Class III reports (Format, Guidelines, and Standards for Class II and Class III Reports [v. 10/2012]). Forms for cultural resources documented during the survey will be submitted via WyoTrack and provided in a report appendix.
- Biological Resources: A desktop survey will be conducted to assess habitat for federally listed threatened and endangered species. U.S. Fish and Wildlife Service's (USFWS) Information for Planning and Consultation (IPaC) tool will be used to generate a species list and conduct a determination key analysis as well as a search of the Wyoming Natural Diversity Database for Species of Greatest Conservation Need. No species-specific or protocol surveys (e.g., for migratory birds, bats, or other special-status species) are included in this scope but may be added if required.
- Hazardous Materials: A desktop survey of publicly available data will be conducted to determine the presence or absence of hazardous materials sites such as brownfields, underground storage tanks (USTs), and other known contaminated sites. HDR will also coordinate with the Wyoming Department of Environmental Quality (WDEQ) to identify potential environmental concerns specific to the project vicinity.
- Economic Resources: A desktop review of publicly available socioeconomic data will be conducted to assess potential impacts on local businesses and overall community cohesion. HDR will evaluate potential disruptions to commercial activity, access to services, and neighborhood connectivity.
- Deliverables
 - Draft and final Resources Overview Report, including:
 - GIS-generated study area map
 - WY SHPO WyoTrack record search results
 - USFWS IPaC species list

- Agency correspondence and summary
- HDR Resources Overview Assumptions
 - The study area will not exceed the initially defined limits.
 - Archival research (e.g., General Land Office maps, historical maps, Sanborn Fire Insurance maps, assessor records) is not included in this scope.
 - HDR will draft up to three agency coordination letters and summarize responses from those agencies in the Resources Overview Report.
 - No aquatic resources (wetlands or Waters of the U.S.) are present in the project area, so a 404 Permit Application is not required.
 - The Resources Overview Report will summarize the findings but will not constitute a NEPA decision.
 - If federal funding is acquired, the appropriate class of NEPA documentation will be determined under a separate scope amendment.
 - Changes to the general project alignment may necessitate an amendment to this scope of services.
 - HDR Cultural Resources Assumptions
 - HDR will record and evaluate built environment resources which are 50 years or older.
 - HDR assumes that any right-of-way (ROW) acquisitions requiring survey will be identified prior to the commencement of field surveys.
 - HDR assumes right-of-entry to all survey areas will be provided prior to the start of fieldwork.
 - HDR assumes no significant delays after mobilization due to weather or activities beyond the control of HDR. In the event of such delays labor will be invoiced as time-and-materials and expenses will be invoiced as accrued.
 - Should the project have an adverse effect on NRHP-eligible or listed structures, buildings, objects, or historic districts identified during the survey, HDR may require additional funding for consultation with WYDOT and SHPO to determine and conduct appropriate mitigation measures.
 - HDR assumes one review of each of the draft, draft final, and final cultural resource report and site forms will be conducted by WYDOT prior to submittal to SHPO.
 - HDR will not record or consider potential adverse effects to property types listed as defined non-sites within the SHPO guidelines (Resource Definitions and Recording Guidelines [v. 9/2012]).
 - HDR assumes only parcels which directly overlap the APE will require survey and that full surveys of entire historic districts will not be required.
 - HDR anticipates assessing effects to two NRHP-listed historic districts, and NRHP evaluation and effects analysis for up to 40 privately owned parcels with buildings 50 years of age or older that overlap the APE and one linear railroad segment that crosses the APE.
 - Up to 4 virtual meetings with the SHPO and/or Cheyenne Historic Preservation Board

Task 4.3 – Landscaping / Streetscaping

- HDR has partnered with Logan Simpson to perform landscape architecture services.
 - The scope of services from Logan Simpson has been attached for reference.

Task 4.4 – Grant Strategy Assistance

- HDR will support the City of Cheyenne in identifying potential available grant funding opportunities for construction.
 - This includes a workshop with 2 HDR staff and the City to discuss what types of funding they are interested in.
 - The resulting document(s) from the Grant Strategy Assistance task will be a technical memorandum or database of available grant opportunities, agency(ies) involved, and deadlines to submit.

- HDR has NOT included any time to help prepare or submit a grant for the City. Should this be desired additional discussion about additional scope will be necessary.

Task 4.5 – Material Management Plan

- Teaming partner Terracon will finalize leverage past knowledge of existing PCE Plume combined with field efforts to create a “materials management plan”. See detailed proposal from Terracon attached herein.
- HDR will review Terracon’s final deliverable(s) for content and applicability
 - This includes HDR technical experts in hazardous materials handling to review and comment on technical approach during report & specification development.

Task 4.6 – BNSF Railroad Coordination

- HDR will prepare for and participate in a scoping and routing meeting with the City and the BNSF Railroad.
 - This includes a potential storm interceptor crossing of the existing railroad tracks at Reed Avenue as well as a conceptual discussion about routing south along Reed Avenue.
 - This assumes that any agreements or reimbursements required by the railroad will be initiated by the City OR can be combined with existing efforts on the Reed Avenue Rail Corridor Project.
 - HDR will prepare two exhibits for the meeting. This includes meeting attendance by three HDR staff. Meeting may be held virtually or in person.
- It is assumed that no railroad insurance or right of entry agreements will be prepared or provided by HDR.

Proposed Work Sequence and Project Schedule

See Estimated Project Schedule(s) from proposal (enclosed)

Proposed Fee

See Attached Detailed Fee Estimate

F. Schedule

The timeline below identifies the schedule items listed in the RFP, and HDR's corresponding completion dates, based on the scope of work we provided.

LEGEND:  PM Updates  Public Meeting  Key Dates

	2025										2026									
TASK	DURATION	May	Jun	Jul	Aug	Sep	Oct	Nov	Dec	Jan	Feb	Mar	Apr	May	Jun	Jul	Aug			
Notice-To-Proceed	1 Day																			
Project Kick-Off	1 Week	U	U	U	U	U	U	U	U	U	U	U	U	U	U	U				
Data Collection	1 Month																			
Subsurface Utility Exploration	2 Weeks																			
Pre-Construction Structural Evaluation (Optional)	2 Weeks																			
Preliminary Design	3 Months																			
Stakeholder Coordination (BOPU, DDA, PD, Fire, Etc.)	2 Weeks																			
Preliminary Plans	1 Day				K															
Subsurface Utility Exploration	1 Week																			
Geotechnical Report	1 Day																			
H&H Model Validation	1 Month																			
Public Meeting #1	1 Day				M															
Includes Owner & Agency Coordination	2 Weeks Prior																			
Final Design	6 Months																			
H&H Model Updates & Design Outputs	2 Months																			
Stakeholder Coordination (BOPU, DDA, PD, Fire, Etc.)	2 Weeks																			
60% Plans	1 Day										K									
Public Meeting #2	1 Day											M								
Drainage Impact Study	1 Month																			
90% Plans	2 Months														K					
Agency Coordination (NEPA Compliance)	1 Month																			
Public Meeting #3	1 Day														M					
Final Plans (PS&E)	1 Day															K				



PROFESSIONAL SERVICES - DESIGN			
Task	Labor	Expenses	Total
Task 1.0 General Conditions	\$ 95,260.00	\$ 928.00	\$ 96,188.00
Task 2.0 Preliminary Design	\$ 427,902.50	\$ 25,366.00	\$ 453,268.50
Task 3.0 Final Design	\$ 289,057.50	\$ 2,693.00	\$ 291,750.50
Task 4.0 Specialty Services	\$ 255,688.00	\$ 3,667.00	\$ 259,355.00
Subtotals		\$ 1,067,908.00 \$ 32,654.00	
Design Total Not-to-Exceed			\$ 1,100,562.00
TOTAL PROJECT (Including Subconsultants)			\$ 1,100,562.00

	Project Team																									Subconsultant	Expenses								
Work Task	Prj. Principal	QA/QC	PM 2	Roadway Design Lead - Eng 4	Engineering Tech. - Eng 1	Traffic & Lighting - Eng 7	Traffic Eng. - Eng 2	H&H QC - Eng 7	H&H Lead - Eng 7	Drainage Eng. Eng 6	Utility Design Lead - Eng 6	GIS 4	Structural Evaluation	RES/ROW 1	Civil Designer - Eng 1	Land Surveyor 4 G.	Land Surveyor 4	CAD Roadway - Cadd 4	CAD Utilities - Cadd 4 D.	Environmental PM - 5	Cultural Resources - Env 3	Haz. Materials - Env 7	Strategic Comm. 2	Project Accountant	Admin Assistant	HDR Labor Total	Subconsultant	Mileage	Lodging	Meal Per Diem	Copies	HDR Mileage	GPS	Total Direct Expenses	Total Project
	M.Oakley	D.Hamilton	T.Mattson	B.Collamer	L. Edwards	L. McQueen	T.Cook	T. Yerdon	J. Christopherson	B. Noble	J. Starck	J.Heliman	J. Coronado	K.Sisson	R.J. DeGaugh	Anderson	N. Fraser	J.Oakley	Humphries	J.D. Mion	A. Mueller	H.Spores	A. Titus	E. Schramm	C. Heer		J.D. Mion	Mile	Night	\$/Day		Mile	Hour		
Contract Billing Rate	\$ 260.00	\$ 280.00	\$ 195.00	\$ 165.00	\$ 125.00	\$ 210.00	\$ 135.00	\$ 210.00	\$ 210.00	\$ 165.00	\$ 195.00	\$ 145.00	\$ 225.00	\$ 120.00	\$ 125.00	\$ 170.00	\$ 170.00	\$ 145.00	\$ 145.00	\$ 195.00	\$ 150.00	\$ 225.00	\$ 130.00	\$ 110.00	\$ 85.00			\$ 0.70	\$ 150.00	\$ 68.00	1.00	0.75	\$ 50.00		
1.0 General Conditions	12	18	270	0	0	16	0	16	30	78	0	0	0	0	0	0	0	0	0	0	4	0	48	28	\$95,260		600	0	6	100	0	0	\$928	\$96,188	
1.1 Project Management	10		140			16				40											4		8	8	\$42,320.00		100			100			\$ 170.00		
1.2 Quality Control	1	16						16		8															\$11,370.00								\$ -		
1.3 Budget & Schedule Updates	1	2																					40	20	\$14,720.00								\$ -		
1.4 Progress Meetings			80						30	30															\$26,850.00		500		6				\$ 758.00		
																									\$ -								\$ -		
2.0 Preliminary Design	0	0	86	132	180	22	0	8	108	178	92	32	0	40	478	200	360	262	292	0	0	0	44	0	0	\$387,780	\$40,123	\$1,372	\$7,800	\$3,604	\$465	\$1,875	\$10,000	\$25,366	\$453,269
2.1 Surveying, Base Mapping, S.U.E.			4	8	12					12	8				24	200	360	100	40		\$15,263					\$125,600.00	1250	50		50	75	2500	200	\$ 23,725.00	
2.2 Project Kick-off & Conceptual Design			8	24	40	2			4	8	8				32				32			4				\$23,820.00								\$ -	
2.3 Geotechnical Investigation			4								16								4						\$4,480.00	\$24,860							\$ -		
2.4 Roadway & Intersection Geometrics			4	40	80																				\$17,380.00								\$ -		
2.5 Preliminary Plans (Submittal)			10	24	40	4				10	16				60			80	16							\$37,910.00		60			150			\$ 192.00	
2.7 Public Involvement (Meeting #1)			44	34										40	2			2					40			\$25,900.00		500	2	2	200			\$ 1,236.00	
2.8 Baseline Hydraulics & Hydrology Analysis / Drainage Impact Study							8		90	120		24			120											\$58,860.00								\$ -	
2.9 Utility Design & Coordination (BOPU)				8						16	16				200				160							\$55,520.00					10			\$ 10.00	
2.10 60% Plans (Submittal)			4																																



HDR Engineering 2025 Hourly Billing Rates

Billing Title	Billing Rate	Billing Title	Billing Rate
Managing Principal	245	Right of Way 4	195
Project Manager 5	235	Right of Way 3	175
Project Manager 4	225	Right of Way 2	155
Project Manager 3	210	Right of Way 1	120
Project Manager 2	195	Right of Way Coordinator	105
Project Manager 1	180	Environmental/Hydrologist/Geologist 6	210
Engineer 9	235	Environmental/Hydrologist/Geologist 5	195
Engineer 8	225	Environmental/Hydrologist/Geologist 4	170
Engineer 7	210	Environmental/Hydrologist/Geologist 3	150
Engineer 6	195	Environmental/Hydrologist/Geologist 2	130
Engineer 5	180	Environmental/Hydrologist/Geologist 1	110
Engineer 4	165	Surveyor 5	190
Engineer 3	150	Surveyor 4	170
Engineer 2	135	Surveyor 3	150
Engineer 1	125	Surveyor 2	130
System Integrator 4	195	Surveyor 1	110
System Integrator 3	175	Construction Manager 5	245
System Integrator 2	155	Construction Manager 4	235
System Integrator 1	125	Construction Manager 3	215
CADD/GIS Technician 6	185	Construction Manager 2	205
CADD/GIS Technician 5	165	Construction Manager 1	185
CADD/GIS Technician 4	145	Strategic Comm/Graphic Designer 4	165
CADD/GIS Technician 3	125	Strategic Comm/Graphic Designer 3	145
CADD/GIS Technician 2	115	Strategic Comm/Graphic Designer 2	130
CADD/GIS Technician 1	105	Strategic Comm/Graphic Designer 1	105
Technician 5	170	Project Controller	120
Technician 4	150	Project Accountant	110
Technician 3	135	Project Assistant	105
Technician 2	115	Admin Assistant	85
Technician 1	105		

Rates shall be adjusted annually. HDR may hire contract workers that will be assigned a billing rate based on this rate sheet. HDR has technical experts in various geographic locations that may be utilized based on specific project need. This specialized expertise will be billed at the below rates.

Billing Title	Billing Rate
Technical Expert 8	355
Technical Expert 7	335
Technical Expert 6	315
Technical Expert 5	305
Technical Expert 4	285
Technical Expert 3	265
Technical Expert 2	245
Technical Expert 1	225

**REIMBURSABLE EXPENSES**

Reimbursable Expense shall mean actual expenses incurred for travel, meals, subconsultants, shipping, and other incurred expense. If negotiated with Owner in the contract, HDR will add an agreed to percentage mark-up to subconsultant invoices to cover administrative expenses and vicarious liability. Specialty equipment charges apply to specific equipment used on the project.

Expense	Rate
Traffic Counting Equipment	\$120.00 per hour
Survey/GPS Equipment	\$50.00 per hour
Robotic Total Station	\$50.00 per hour
Side-by-Side Utility Vehicle	\$25.00 per hour
Handheld GPS	\$20.00 per hour
Drone	\$275.00 per day
HDR Vehicle Mileage	\$0.75 per mile
Personal Vehicle Mileage	IRS rate per mile
Printing (in-house)	
B&W 8.5x11	\$0.0857 each
Color 8.5x11	\$0.1801 each
B&W 11x17	\$0.1714 each
Color 11x17	\$0.3602 each
Plots Bond	\$0.55 per sq. ft.



L O G A N S I M P S O N

May 16, 2025

Todd Mattson
PE
HDR Inc.

Dear Todd,

We are excited to submit this proposal for the Cheyenne 18th St. Streetscape project.

Task 1. Project Startup and Pre-design

We will begin with a focused Kick-off Meeting to confirm the scope, define deliverables, establish roles and responsibilities, and set clear communication standards. This will ensure alignment between all stakeholders from the outset. Additionally, we will conduct an in-depth Work Session and Site Visit to review the project boundary and collect field data and develop character base maps.

Task 2. Concept/ Schematic Design

Task 2 will begin the design process with our team developing 3 concepts with key areas shown in plan and 3D views with building massing for context. We will have an order of magnitude opinion of probable costs for concept evaluation and discussion with key stakeholders for the first engagement meeting. Completion of schematic design will include a preferred plan developed in AutoCAD.

Task 3. Design Development

Design development will include CAD drawings including all areas within the limit of work to a 60% complete construction document level. Specifications will be included in outline form, with an opinion of probable cost.

Task 4. Construction Documentation 90% and 100%

Construction documents will include both 90% coordination documents, and final 100% Construction documents. Both deliverable milestones will include specifications and opinion of probable costs.

Sincerely,

Jana McKenzie, Principal/Contract Manager
E: jmckenzie@logansimpson.com

Steve Sigler, Senior Landscape Architect/Project Manager
E: ssigler@logansimpson.com

SCOPE OF WORK

TASK 1. PROJECT STARTUP AND PRE-DESIGN Our design team will Facilitate a project kick-off meeting to confirm the scope, outline deliverables, establish roles and responsibilities, and set the project timeline. Also establish standards for communication and documentation.

- On-site meeting and project start up
- Existing conditions and analysis
- Opportunities and constraints
- Preliminary program, amenities and precedent imagery for styles and materials
- Stakeholder engagement meeting #1
- Project coordination and management

TASK 2. CONCEPT/ SCHEMATIC DESIGN

- Develop Preliminary Concepts (3)
- Illustrative Plans and 3d Graphics
- Preliminary Opinion of Probable Cost
- Stakeholder engagement #2
- Review meeting with City
- Develop Preferred Plan
- Irrigation consultant-
- QA/QC and Submittal Assembly
- Project Management and Coordination

TASK 3. DESIGN DEVELOPMENT

- Existing Conditions, Demolition, Layout/Materials, Landscape Plans
- Site Details
- Irrigation Design Development
- Stakeholder engagement #3
- Specifications-Outline
- Preliminary Opinion of Probable Cost
- QA/QC and Submittal Assembly
- Project Management and Coordination

TASK 4. CONSTRUCTION DOCUMENTATION 90% AND 100%

- Existing Conditions, Demolition, Layout/Materials, Landscape plans
- Site Details
- Irrigation Construction Documents
- Specifications
- Interim and Final Opinion of Probable Cost
- QA/QC and Submittal Assembly
- Project Management and Coordination

Logan Simpson Design Inc.
Project Name: Cheyenne 18th St.
Streetscape
LS #
Date:5-12-2025
PM:Steve Sigler
Math check done by:

Tasks	Landscape Architect, Sr.	Landscape Architect, Associate	Landscape Designer	GIS Analyst	Subtotal Hours	Subtotal Labor	Direct Expenses		Total Labor & Expenses
							Mileage	Subtotal	
							0.700	Expense	
Task 1. Project Startup and Pre-Design									
On-site meeting and project start up	6	6			12	\$ 1,890	180	\$ 126	\$ 2,016
Existing conditions and analysis	2	8	8	8	26	\$ 3,127		\$ 1,750	\$ 4,877
Opportunities and constraints	2	8	8		18	\$ 2,340		\$ -	\$ 2,340
Preliminary program, amenities and precedent imagery for styles and materials	4		16		20	\$ 2,360		\$ -	\$ 2,360
Stakeholder engagement meeting #1	4		8		12	\$ 1,520		\$ -	\$ 1,520
Project coordination and management	4				4	\$ 680		\$ -	\$ 680
					0	\$ -		\$ -	\$ -
					0	\$ -		\$ -	\$ -
					0	\$ -		\$ -	\$ -
					0	\$ -		\$ -	\$ -
					0	\$ -		\$ -	\$ -
					0	\$ -		\$ -	\$ -
Subtotal Task 1 Labor	22	22	40	8	92	\$ 11,917	180	\$ 1,876	\$ 13,793
Task 2. Concept/ Schematic Design									
Develop Preliminary Concepts (3)	24	32	32	16	104	\$ 13,653		\$ -	\$ 13,653
Illustrative Plans and 3d Graphics	8		40	8	56	\$ 6,347		\$ -	\$ 6,347
Preliminary Opinion of Probable Cost	8		8		16	\$ 2,200		\$ -	\$ 2,200
Stakeholder engagement #2	8		8		16	\$ 2,200		\$ -	\$ 2,200
Review meeting with City	8		8		16	\$ 2,200		\$ -	\$ 2,200
Develop Preferred Plan	24	32	32		88	\$ 12,080		\$ -	\$ 12,080
Irrigation allowance					0	\$ -		\$ 3,500	\$ 3,500
QA/QC and Submittal Assembly	4		4		8	\$ 1,100		\$ -	\$ 1,100
Project Management and Coordination	8				8	\$ 1,360		\$ -	\$ 1,360
					0	\$ -		\$ -	\$ -
					0	\$ -		\$ -	\$ -
					0	\$ -		\$ -	\$ -
Subtotal Task 2 Labor	68	32	100	8	208	\$ 27,487	0	\$ 3,500	\$ 30,987
Task 3. Design Development									
Existing Conditions, Demolition, Layout/Materials,Landscape plans	8	32	32	8	80	\$ 10,146		\$ -	\$ 10,146
Site Details	4	32	32		68	\$ 8,680		\$ -	\$ 8,680
Irrigation allowance					0	\$ -		\$ 5,000	\$ 5,000
Stakeholder engagement #3	8		8		16	\$ 2,200		\$ -	\$ 2,200
Specifications-Outline	1				1	\$ 170		\$ -	\$ 170
Preliminary Opinion of Probable Cost	2	8	8		18	\$ 2,340		\$ -	\$ 2,340
QA/QC and Submittal Assembly	4	4			8	\$ 1,260		\$ -	\$ 1,260
Project Management and Coordination	12				12	\$ 2,040		\$ -	\$ 2,040
					0	\$ -		\$ -	\$ -
					0	\$ -		\$ -	\$ -
					0	\$ -		\$ -	\$ -
					0	\$ -		\$ -	\$ -
Subtotal Task 4 Labor	39	76	80	8	203	\$ 26,836	0	\$ 5,000	\$ 31,836
Task 4. Construction Documentation 90% and 100%									
Existing Conditions, Demolition, Layout/Materials, Grading	32	64	64	8	168	\$ 22,227		\$ -	\$ 22,227
Site Details	8	24	32		64	\$ 8,200		\$ -	\$ 8,200
Irrigation allowance					0	\$ -		\$ 15,000	\$ 15,000
Specifications	10		2		12	\$ 1,910		\$ -	\$ 1,910
Opinion of Probable Cost	8		8		16	\$ 2,200		\$ -	\$ 2,200
QA/QC and Submittal Assembly	4		4		8	\$ 1,100		\$ -	\$ 1,100
Project Management and Coordination	16				16	\$ 2,720		\$ -	\$ 2,720
					0	\$ -		\$ -	\$ -
					0	\$ -		\$ -	\$ -
					0	\$ -		\$ -	\$ -
					0	\$ -		\$ -	\$ -
Subtotal Task 5 Labor	78	88	110	8	284	\$ 38,357	0	\$ 15,000	\$ 53,357
Subtotal Labor Hours	207	218	330	32	787	\$ 104,597	180	\$ 25,376	\$ 129,973
Subtotal Labor Costs	\$35,190	\$31,610	\$34,650	\$3,147	787	\$ 104,597	\$ 126	\$ 25,376	\$ 129,973
Salary Rate	\$170.00	\$ 145.00	\$ 105.00	\$ 98.33					



Badger Hydrovac Service Proposal

United States

Prepared By:	Robert Bruce
Email:	rbruce@badgerinc.com
Phone:	307-370-0990
Date:	03/19/2025
Estimate Number:	CPQ-152733v1
Project Name:	18th street potholing- Cheyenne



Badger Daylighting Corp
CHEYENNE WY CORP
208 CR 128A
Cheyenne, WY 82007
"An equal opportunity employer"

Estimate

Date

03/19/2025

Reference

CPQ-152733

Prepared By

Robert Bruce

Customer Information

Company	HDR INC	Contact Name	Todd Mattson
Contact Phone #	+1 (307) 660-7265	Email	Todd.e.mattson@hdrinc.com
Billing Address	1917 S 6TH STR	Title	PM
Billing City/State	OMAHA NE 68106	Account Number	30590
Service Address	W 18th St Cheyenne WY 82001		

Scope Of Work

Hydrovac will be charged at a by the hour basis. From port to port. This is a time and material rate sheet only. Below is an example of a 9 hour day

Service Item	Item Description	Unit Cost	UOM	Quantity	Amount
BADGER HYDROVAC WITH OPERATOR		\$305.00	HR	8.0	\$2,440.00
BADGER HYDROVAC WITH OPERATOR OVERTIME		\$335.00	HR	1.0	\$335.00
DISPOSITION		\$220.00	EA	1.0	\$220.00
CONSUMABLE MATERIALS		\$75.00	EA	1.0	\$75.00
FLUCTUATING FUEL RECOVERY		\$272.05	EA	1.0	\$272.05
SUPPLY WATER	As needed if not provided onsite	\$125.00	EA	1.0	\$125.00
ADDITIONAL SERVICE - OTHER	Coring per hole	\$275.00	EA	1.0	\$275.00
Total					\$3,742.05

This proposal contains the budgetary estimate to complete the work as described above under the heading "Scope of Work". If any part of the work varies from that described in Scope of Work, or if unexpected digging conditions are encountered (eg rocks, rubble, roots, etc...), then additional charges shall apply. All work will be done on a time and material basis. All work will be done in accordance with the terms and conditions contained in Badger Daylighting Corp.'s standard terms and conditions (USA) attached hereto.

Customer (Company) _____

PO #: _____

Name (Please Print) _____

Title: _____

Signature _____

Date: _____

I am authorized to bind the Company





1901 Sharp Point Dr Ste C
Fort Collins, CO 80525-4429
P 970-484-0359
F 970-484-0454
Terracon.com

May 16, 2025

HDR Engineering, Inc.
7350 Stockman Street, Ste. A
Cheyenne, WY 82009

Attn: Todd Mattson
P: (307) 757-9004
E: todd.e.mattso@hdrinc.com

RE: Proposal for Material Management Plan
18th Street Reconstruction
18th Street, House Avenue to Snyder Avenue
Cheyenne, Wyoming
Terracon Proposal No. P24255027

Dear Mr. Mattson:

Terracon Consultants, Inc. (Terracon) appreciates the opportunity to submit this proposal to HDR Engineering, Inc. (client) to provide material management services for the above-referenced project area (hereinafter known as the "site"). We understand the project is located along 18th Street from House Avenue to Snyder Avenue in Cheyenne, Wyoming.

Scope of Services

*(see Section 2.0 of
attached proposal detail)*

Preparation of a Materials Management Plan (MMP).

Schedule

*(see Section 3.0 of
attached proposal detail)*

Services will be initiated upon written authorization to proceed. The MMP report will be delivered within approximately 30 business days after receipt of written authorization to proceed.

Compensation *(see
Section 4.0 of attached
proposal detail)*

Estimated Fee \$6,000 (Lump Sum)

This proposal is valid only if authorized within 90 days from the proposal date. Your authorization for Terracon to proceed in accordance with this proposal can be issued by providing us a Subconsultant Agreement for us to review referencing this proposal.

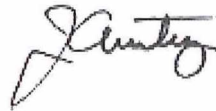
We appreciate the opportunity to provide this proposal and look forward to working with you on this project. If you have any questions or comments regarding this proposal or require additional services, please give us a call.

Sincerely,

Terracon Consultants, Inc.

A handwritten signature in black ink, appearing to read 'John Skogman', with a long horizontal flourish extending to the right.

John A. Skogman, P.E.
Senior Environmental Engineer

A handwritten signature in black ink, appearing to read 'Jonathan Anstey', with a long horizontal flourish extending to the right.

Jonathan P. Anstey, P.G.
Senior Associate

Attachments: Detailed Scope of Services

DETAILED SCOPE OF SERVICES

1.0 PROJECT INFORMATION

Our Scope of Services is based on our understanding of the project as described by HDR and the anticipated conditions as described below. We have not visited the project site to confirm the information provided. Aspects of the project, undefined or assumed, are shown below. We request HDR and/or the design team verify all information prior to our initiation of field exploration activities.

Planned Construction

Item	Description
Information Provided	This proposal is based on the information provided by HDR beginning on March 19, 2025. Information provided included: ■ "Professional Services Agreement 18th Steet Reconstruction Project, Exhibit A – Scope of Work"
Project Description	We understand this project is located along 18th Street from House Avenue to Snyder Avenue. This HDR scope is to include the design of the roadway, storm sewer, sanitary sewer, and water transmission. The replacement of the existing water main from House Avenue to Snyder Avenue and all branch watermains, fire hydrant leads, fire hydrants, and water service within the ROW. This reconstruction will also include existing manholes and lampholes in the ROW.

Site Location

Item	Description
Location	The site is located along 18 th Street, from House Avenue to Snyder Avenue in Cheyenne, Wyoming.
Existing Improvements	The project area currently consists of parking and drive areas and sidewalks.
Current Ground Cover	Concrete and asphalt pavement.

Item	Description
Existing Topography	Based on Google Earth Pro, the surface elevation at the intersection of 18 th Street and House Avenue is approximately 6,070 feet, 6,065 feet at the intersection of 18 th Street and Pioneer Avenue, and back to 6,070 feet at the intersection of 18 th Street and Reed Avenue. The approximate elevation drops about 18 feet along the block from Reed Avenue to Snyder Avenue. Improved topographic information should be provided, if available.

2.0 SCOPE OF SERVICES

The proposed scope of services is in response discussions with the client.

Based on Terracon's understanding of the site, the project crosses an area identified by the Wyoming Department of Environmental Quality (WDEQ) as the Former Cheyenne Steam Laundry. Based on a Site Characterization Report dated October 9, 2014 prepared by Terracon, concentrations of tetrachloroethene (PCE) were reported in soil and groundwater in the vicinity of the site.

Materials Management Plan (MMP)

Terracon will prepare an MMP to assist with the management of subsurface media potentially impacted with the identified chemicals of concern, including PCE. The MMP will provide best management practices for site safety, site control/security, and contaminated soil/groundwater contingency procedures including soil segregation, stockpile management, and soil stockpile characterization. In addition, the plan will provide direction on the proper disposition (if warranted) of soil and/or groundwater to be disturbed, in the form of laboratory analysis required for waste characterization and/or profiling the waste materials for disposal at the proper and authorized facility.

3.0 SCHEDULE

Services will be initiated upon receipt of the written notice to proceed. The MMP will be submitted to the client within 30 business days of authorization to proceed.

4.0 COMPENSATION

The Scope of Services outlined in this proposal will be conducted for a lump sum of \$6,000. If, as a result of these services, additional services are required that are outside the scope of this proposal, you will be contacted to discuss associated costs. Client authorization will be obtained prior to commencement of additional services outside the scope of this proposal.

5.0 ASSUMPTIONS AND LIMITATIONS

This proposal and cost estimate were prepared based on the following assumptions:

- **Site Access and Safety:** Client shall secure all necessary site related approvals, permits, licenses, and consents necessary to commence and complete the Services and will execute any necessary site access agreement. Consultant will be responsible for supervision and site safety measures for its own employees, but shall not be responsible for the supervision or health and safety precautions for any third parties, including Client's contractors, subcontractors, or other parties present at the site. In addition, Consultant retains the right to stop work without penalty at any time Consultant believes it is in the best interests of Consultant's employees or subcontractors to do so in order to reduce the risk of exposure to the coronavirus. Client agrees it will respond quickly to all requests for information made by Consultant related to Consultant's pre-task planning and risk assessment processes.
- **Hazardous Conditions:** Client will notify Terracon, prior to mobilization, of any restrictions, special site access requirements, or known potentially hazardous conditions at the site (e.g., hazardous materials or processes, specialized protective equipment requirements, unsound structural conditions, etc.).
- **Site Access:** Field work is not included with the scope of work included in this proposal.
- Proposed fees do not include implementation of the MMP, including construction oversight, confirmation sampling and waste profiles for waste disposal.
- Proposal fees do not include costs associated with procuring materials and labor, equipment, and/or installation observations; general and engineering permits, or material testing services.

If any of these assumptions or conditions are not accurate or change during the project, the stated fee is subject to change. Please contact us immediately if you are aware of any inaccuracies in these assumptions and conditions, so we may revise the proposal or fee.



1505 Old Happy Jack Road
Cheyenne, WY 82001
P (307) 632-9224
Terracon.com

March 31, 2025

HDR Engineering, Inc.
7350 Stockman Street, Ste. A
Cheyenne, WY 82009

Attn: Todd Mattson
P: (307) 757-9004
E: todd.e.mattson@hdrinc.com

Re: Proposal for Geotechnical Engineering Services
18th Street Reconstruction
18th Street, House Avenue to Snyder Avenue
Cheyenne, Wyoming
Terracon Proposal No. P24255027

Dear Mr. Mattson:

We appreciate the opportunity to submit this proposal to HDR Engineering, Inc. (HDR) to provide Geotechnical Engineering services for the project referenced above. The following are exhibits to this proposal.

Exhibit A	Project Understanding
Exhibit B	Scope of Services
Exhibit C	Compensation and Project Schedule
Exhibit D	Site Location
Exhibit E	Anticipated Exploration Plan

Our base fee to perform the Scope of Services described in this proposal is \$32,600. Exhibit C includes details of our fees and consideration of additional services as well as a general breakdown of our anticipated schedule.

Your authorization for Terracon to proceed in accordance with this proposal can be issued by providing a Geotech Subconsultant Agreement for us to review referencing this proposal.

Sincerely,
Terracon

Emily Sinnott
Staff Engineer

Eric D. Bernhardt, P.E.
Regional Geotechnical Manager

Exhibit A – Project Understanding

Our Scope of Services is based on our understanding of the project as described by HDR and the anticipated conditions as described below. We have not visited the project site to confirm the information provided. Aspects of the project, undefined or assumed, are highlighted as shown below. We request HDR and/or the design team verify all information prior to our initiation of field exploration activities.

Planned Construction

Item	Description
Information Provided	This proposal is based on the information provided by HDR beginning on March 19, 2025. Information provided included: ■ “Professional Services Agreement 18th Steet Reconstruction Project, Exhibit A – Scope of Work”
Project Description	We understand this project is located along 18th Street from House Avenue to Snyder Avenue. This scope is to include the design of the roadway, storm sewer, sanitary sewer, and water transmission. The replacement of the existing water main from House Avenue to Snyder Avenue and all branch watermains, fire hydrant leads, fire hydrants, and water service within the ROW. This reconstruction will also include existing manholes and lampholes in the ROW.
Proposed Foundations	We understand the only foundations anticipated are those for the new manholes and traffic signal poles.
Maximum Loads	Anticipated loads for the manhole foundations were not provided. Please provide upon commencement of this project.
Grading/Slopes	We anticipate final grading with be within 1 to 2 feet of the current surface elevations.
Below-Grade Structures	This reconstruction includes the replacement of the water mains, fire hydrant leads, and water service lines. We do not anticipate any below-grade structures beyond these.
Free-Standing Retaining Walls	Retaining walls are not expected to be constructed as part of site development to achieve final grades.
Pavements	We assume only flexible (asphalt) pavement sections will be considered.

Item	Description
	Anticipated traffic loading/volumes were not available at the time of this proposal. We request this information be provided prior to the development of our geotechnical analysis. The pavement design period is 20 years.

Site Location and Anticipated Conditions

Item	Description
Location	The project is located along 18th Street, from House Avenue to Snyder Avenue in Cheyenne, Wyoming. See Exhibit D – Site Location.
Existing Improvements	The project area currently consists of parking and drive areas and sidewalks.
Current Ground Cover	Concrete and asphalt pavement.
Existing Topography	Based on Google Earth Pro, the surface elevation at the intersection of 18th Street and House Avenue is approximately 6,070 feet, 6,065 feet at the intersection of 18th Street and Pioneer Avenue, and back to 6,070 feet at the intersection of 18th Street and Reed Avenue. The approximate elevation drops about 18 feet along the block from Reed Avenue to Snyder Avenue. Improved topographic information should be provided, if available.
Site Access	We expect the site, and all exploration locations, are accessible with our truck-mounted drilling equipment and support vehicles.
Expected Subsurface Conditions	Our experience near the vicinity of the proposed development and review of geologic maps indicates subsurface conditions may consist of clayey sands and silty sands overlaying clays and poorly graded sands. Groundwater may be encountered at depths ranging from about 7 to 10 feet below current ground surface in areas around existing storm water ponds, but we do not anticipate consistent groundwater across the site.



Exhibit B - Scope of Services

Our proposed Scope of Services consists of field exploration, laboratory testing, and engineering/project delivery. These services are described in the following sections.

Field Exploration

Based on input provided by HDR, and our experience with similar projects in the vicinity of the project site, we propose the following field exploration program which is anticipated to be completed with 2 to 3 days of on-site activities.

Number of Borings	Planned Boring Depth (feet) ¹	Planned Location ²
5	15	Parking/driveway areas
10	10	Parking/driveway areas

- 1. Below existing ground surface or practical auger refusal, whichever is shallower
- 2. The planned boring locations are shown on **Exhibit E – Anticipated Exploration Plan**.

Boring Layout and Elevations: The fees quoted in this proposal are based on Terracon providing layout and approximate ground surface elevations of the borings. We use handheld GPS equipment to locate borings with an estimated horizontal accuracy of +/-20 feet. Distances from available reference features can also be measured using a mechanical surveying wheel. We understand all boring locations will be surveyed and coordinates and surface elevations will be provided by HDR after our field exploration is complete for inclusion in our report. Provisions can be made for the boring locations to be professionally surveyed for an additional fee.

Subsurface Exploration Procedures: We will advance soil borings with a truck-mounted drill rig using continuous-flight augers (solid-stem and/or hollow-stem, as necessary, depending on subsurface conditions). Typically, five samples are obtained in the upper 10 feet of each boring and at intervals of 5 feet thereafter. Sampling will be in general accordance with local standard procedures wherein California barrel or split-barrel samples are obtained. The split-barrel samplers are driven in accordance with the standard penetration test (SPT). California barrel sampling procedures are similar to standard split spoon sampling procedure; however, blow counts are typically recorded for 6-inch intervals for a total of 12 inches of penetration. The samples will be placed in appropriate containers, taken to our soil laboratory for testing, and classified by a Geotechnical Engineer.

Groundwater levels will be observed and recorded during drilling and sampling. Provisions have not been made to obtain delayed groundwater readings.



Our proposed fee assumes drill rigs can advance borings to the proposed depths using the methods described previously. If difficult drilling conditions are encountered, we will notify HDR as soon as it appears costs will exceed our proposed fee to discuss other drilling alternatives.

Our exploration team will prepare field boring logs as part of standard drilling operations including sampling depths, penetration distances, and other relevant sampling information. Field logs include visual classifications of materials observed during drilling and our interpretation of subsurface conditions between samples. Final boring logs, prepared from field logs, represent the Geotechnical Engineer's interpretation and include modifications based on observations and laboratory tests.

Property Disturbance: Terracon will take reasonable efforts to reduce damage to the property. However, it should be understood that in the normal course of our work some disturbance could occur.

We will backfill borings with auger cuttings upon completion. Pavements will be patched with cold-mix asphalt and/or quick setting concrete, as appropriate. Our services do not include repair of the site beyond backfilling our boreholes and patching existing pavements. Excess auger cuttings will be removed from the site and disposed of. Because backfill material often settles below the surface after a period, we recommend boreholes to be periodically checked and backfilled, if necessary. We can provide this service or grout the boreholes for additional fees at your request.

Safety

Terracon is not aware of environmental concerns at this project site that would create health or safety hazards associated with our exploration program; thus, our Scope considers standard OSHA Level D Personal Protection Equipment (PPE) appropriate. Our Scope of Services does not include environmental site assessment services, but identification of unusual or unnatural materials observed while drilling will be noted on our logs.

Exploration efforts require borings into the subsurface; therefore, Terracon will comply with local regulations to request a utility location service through Wyoming 811. Additionally, as part of Terracon's Incident and Injury Free (IIF) culture, all developed sites require utility clearance using private utility locating services prior to performing below-ground exploration. Fees for these services are included in our general scope for this project. We will consult with the client regarding potential utilities or other unmarked underground hazards. Private utilities should be marked and disclosed to us by the owner/client prior to commencement of field exploration. Based upon the results of this consultation, we will consider the need for alternative subsurface exploration

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methods as the safety of our field crew is a priority. Terracon will not be responsible for damage to private utilities not disclosed to us.

The detection of underground utilities is dependent upon the composition and construction of the utility line; some utilities are comprised of non-electrically conductive materials and may not be readily detected. The use of a private utility locate service would not relieve the landowner/client of their responsibilities in identifying private underground utilities.

Site Access: Terracon must be granted access to the site by the property owner. Without information to the contrary, we consider acceptance of this proposal as authorization to access the property for conducting field exploration in accordance with the Scope of Services. Our proposed fees do not include time to negotiate and coordinate access. Terracon will conduct field services during normal business hours (Monday through Friday between 7:00am and 6:00pm). If our exploration must take place over a weekend or at night, please contact us so we can adjust our schedule and fee.

Traffic Control: For the work scope of this proposal, we have budgeted for subcontracting traffic control services (signage and flagman) during our drilling activities, which is anticipated to take 2 to 3 days. This proposal is based on the assumption that one traffic lane can be closed temporarily within about 100 feet (+/-) of our drill rig during our drilling activities. Alternatively, others could provide all required traffic control as a cost savings measure.

Laboratory Testing

The project engineer will review field data and assign laboratory tests to understand the engineering properties of various soil and rock strata. Exact types and number of tests cannot be defined until completion of fieldwork, but we anticipate the following laboratory testing may be performed:

- Water content
- Dry unit weight
- Atterberg limits
- Grain size analysis
- Swell/consolidation
- Moisture-density relationship
- California Bearing Ratio (CBR)
- Chemical analyses – pH, soluble sulfate, sulfides, chlorides, RedOx, total salts, and electrical resistivity



Our laboratory testing program includes examination of soil samples by an engineer/geologist. Based on the results of our field and laboratory programs, we will describe and classify soil samples in accordance with the Unified Soil Classification System (USCS).

Engineering and Project Delivery

The results of our field and laboratory programs will be evaluated, and a geotechnical engineering report will be prepared under the supervision of a licensed professional engineer. The geotechnical engineering report will provide the following:

- Site Location and Exploration Plans
- Subsurface exploration procedures
- Description of subsurface conditions
- Boring logs with:
 - Stratification based on visual soil classification
 - Summarized laboratory data
 - Groundwater levels observed in the boreholes
 - Approximate ground surface elevation
 - Approximate latitude-longitude
- Earthwork recommendations including site/subgrade preparation
- Recommended foundation options and engineering design parameters
- Geotechnical parameters for thrust blocks, if applicable
- Shallow foundation recommendations
 - Net allowable bearing pressure
 - Anticipated total foundation settlement
 - Anticipated differential foundation settlement
 - Frost embedment depth
- Recommended pavement options and design parameters

In addition to an emailed report, your project will also be delivered using the **Terracon Compass** website. Upon initiation, we provide you and your design team the necessary link and password to access the website (if not previously registered). Each project includes a calendar to track the schedule, an interactive site map, a listing of team members, access to the project documents as they are uploaded to the site, and a collaboration portal. We welcome the opportunity to have project kickoff conversations with the team to discuss key elements of the project and demonstrate features of the portal. The typical delivery process includes the following:



- Project Planning – Proposal information, schedule, and anticipated exploration plan
- Site Characterization – Findings of the site exploration and laboratory results
- Geotechnical Engineering Report

When services are complete, we upload a printable version of our completed Geotechnical Engineering report, including the Professional Engineer's seal and signature, which documents our services. Previous submittals, collaboration, and the report are maintained in our system. This allows future reference and integration into subsequent aspects of our services as the project goes through final design and construction.

Additional Services

In addition to the services noted above, the following are often associated with geotechnical engineering services. Fees for services noted above do not include the following:

Review of Plans and Specifications: Our geotechnical report and associated verbal and written communications will be used by others in the design team to develop plans and specifications for construction. Review of project plans and specifications is a vital part of our geotechnical engineering services. This consists of review of project plans and specifications related to site preparation, utilities, and pavement construction. Our review will include a written statement conveying our opinions relating to the plans and specifications' consistency with our geotechnical engineering recommendations.

Observation and Testing of Pertinent Construction Materials: Development of our geotechnical engineering recommendations and report relies on an interpretation of soil conditions. Our assessment is based on widely spaced exploration locations and the assumption that construction methods will be performed in a manner sufficient to meet our expectations and consistent with recommendations made at the time the geotechnical engineering report is issued. We should be retained to conduct construction observations, and perform/document associated materials testing, for site preparation, utilities, and pavement construction. These services allow a more comprehensive understanding of subsurface conditions and necessary documentation of construction to confirm and/or modify (when necessary) the assumptions and recommendations made by our engineers.

Environmental Assessments: Our Scope for this project does not include, either specifically or by implication, an environmental assessment of the site intended to identify or quantify potential site contaminants. If the client/owner is concerned about the potential for such conditions, an environmental site assessment should be conducted. We can provide a proposal for an environmental assessment, if desired.



Exhibit C - Compensation and Project Schedule

Compensation

Based upon our understanding of the site, the project as summarized in Exhibit A, and our planned Scope of Services described in Exhibit B, our base fee is shown in the following table:

Task	Lump Sum Fee ²
Private Utility Locates	\$6,150
Subsurface Exploration ¹	\$8,710
Traffic Control	\$4,140
Laboratory Testing	\$8,600
Project Management, Geotechnical Analysis, and Reporting	\$5,000
Total	\$32,600

1. The lump sum fee considers one drill rig mobilization and no unexpected onsite delays. If additional drill rig mobilizations are required, an additional fee of \$1,250 would be invoiced. A drill crew standby rate of \$375 per hour would be invoiced for unexpected delays.
2. Proposed fees noted above are effective for 90 days from the date of the proposal.

Our Scope of Services does not include services associated with site clearing, wet ground conditions, tree or shrub clearing, or repair of/damage to existing landscape. If such services are desired by the owner/client, we should be notified so we can adjust our Scope of Services.

Unless instructed otherwise, we will submit our invoice(s) to the address shown at the beginning of this proposal. If conditions are encountered that require Scope of Services revisions and/or result in higher fees, we will contact you for approval, prior to initiating services. A supplemental proposal stating the modified Scope of Services as well as its effect on our fee will be prepared. We will not proceed without your authorization.

Project Schedule

We developed a schedule to complete the Scope of Services based upon our existing availability and understanding of your project schedule. However, our schedule does not

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account for delays in field exploration beyond our control, such as weather conditions, delays resulting from utility clearance, permit delays, or lack of permission to access the boring locations. In the event the schedule provided is inconsistent with your needs, please contact us so we may consider alternatives.

Delivery on Compass	Schedule ^{1, 2}
Kickoff Call with Client	Min. 2 days prior to mobilization for field program
Site Characterization	15 to 20 days after completion of field program
Geotechnical Engineering	20 to 25 days after completion of field program
1. Upon receipt of your notice to proceed, we will activate the schedule component on Terracon Compass with specific, anticipated dates for the delivery points noted above as well as other pertinent events. 2. Standard workdays. We will maintain an activities calendar within on Terracon Compass. The schedule will be updated to maintain a current awareness of our plans for delivery. 3. If information is needed prior to completion of our Geotechnical Engineering Report, preliminary recommendations for specific project elements can be provided after completion of our field and laboratory programs upon request.	



Exhibit D – Site Location

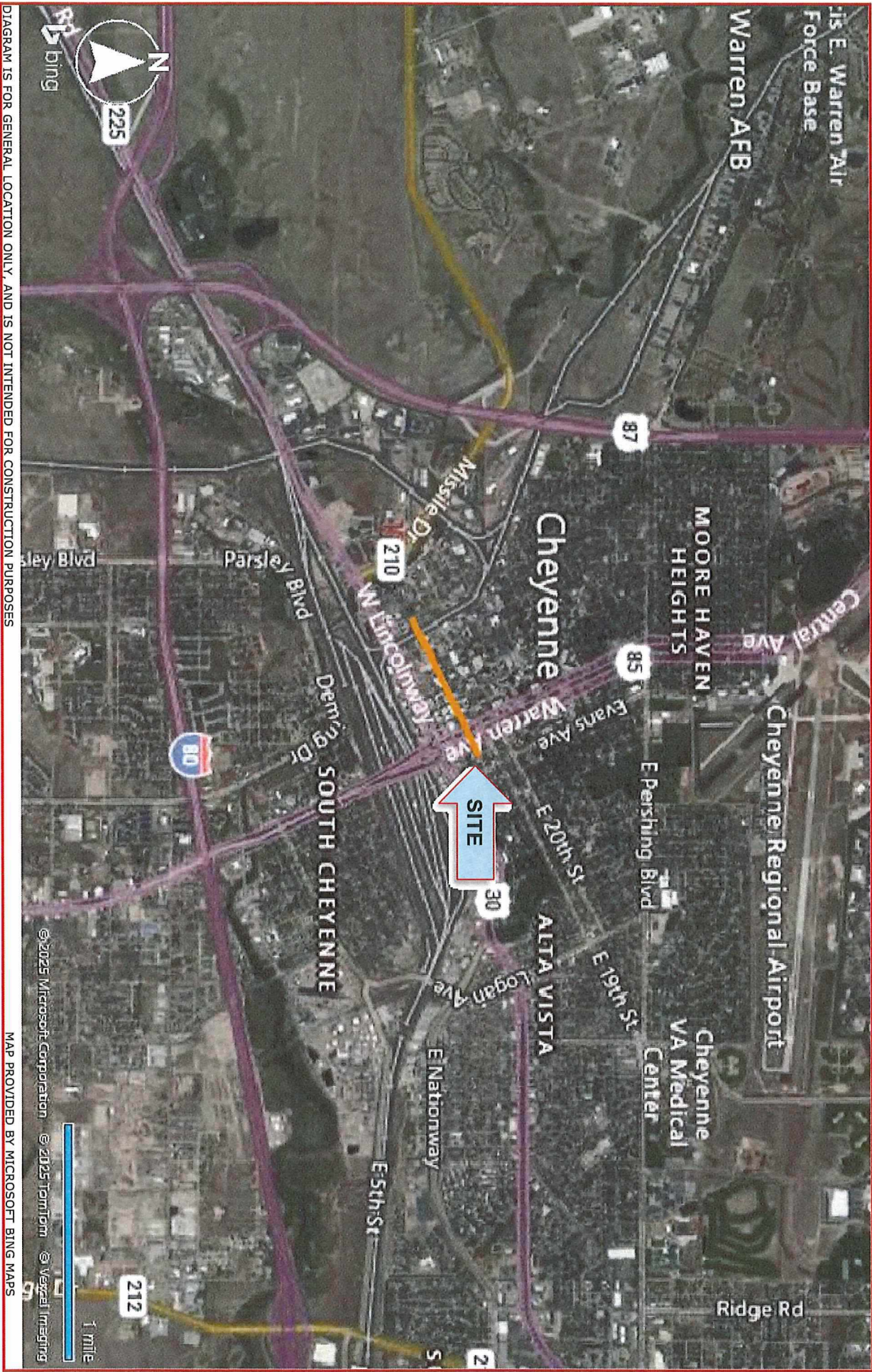




Exhibit E – Anticipated Exploration Plan

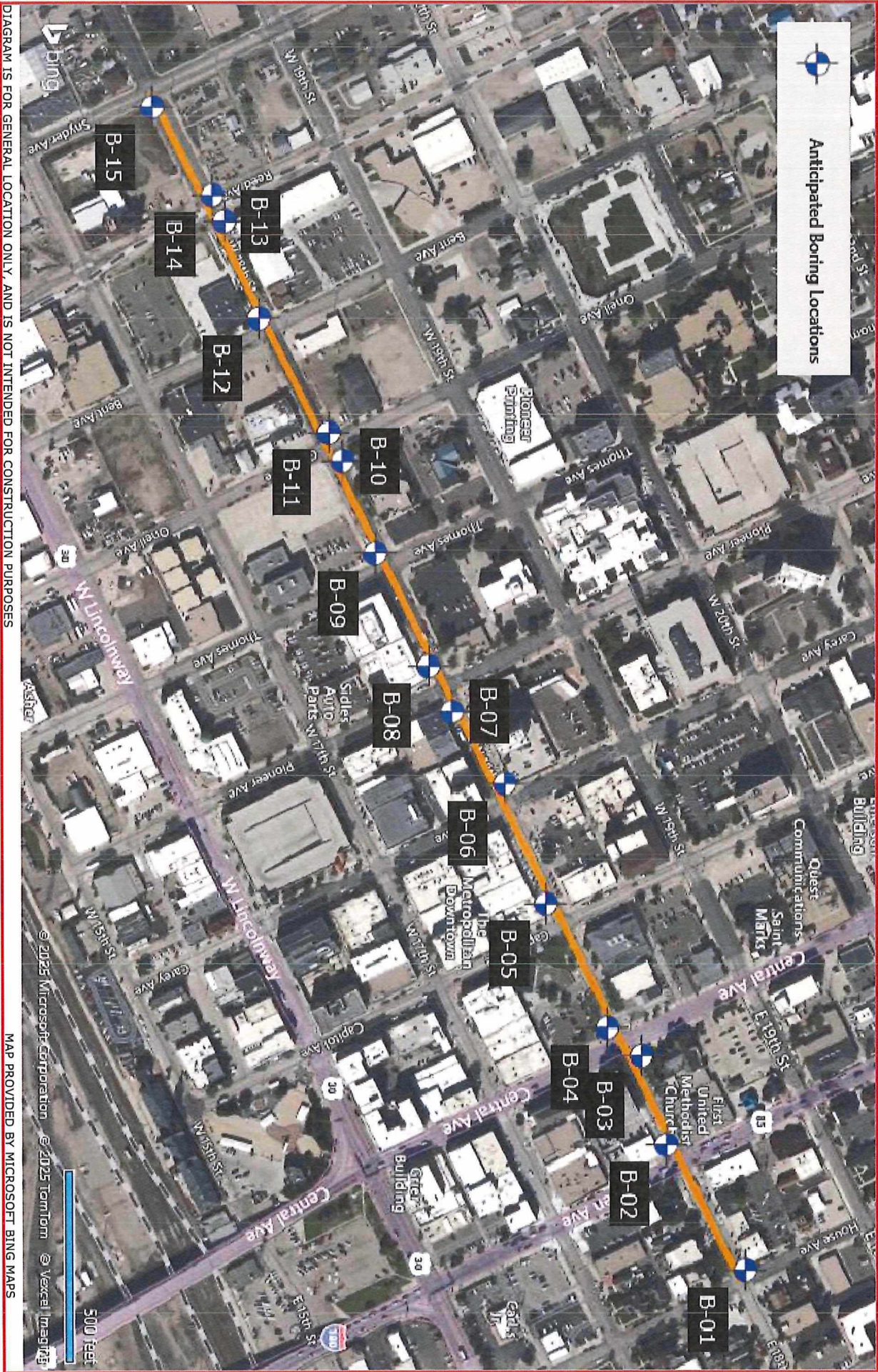


DIAGRAM IS FOR GENERAL LOCATION ONLY, AND IS NOT INTENDED FOR CONSTRUCTION PURPOSES

MAP PROVIDED BY MICROSOFT BING MAPS